



CHAPTER xiv.

An Act to confer further powers upon the mayor aldermen and burgesses of the borough of Luton with reference to the repairing of private streets and for other purposes. [18th July 1947.]

WHEREAS the borough of Luton (hereinafter referred to as "the borough") is a municipal borough under the government and local management of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation"):

And whereas the Corporation are the highway authority as respects the highways repairable by the inhabitants at large (other than county roads and trunk roads) within the borough:

And whereas the Corporation have under the provisions of the Local Government Act 1929 claimed to exercise the functions of maintenance and repair of the county roads within the borough which roads are accordingly vested in the Corporation and they are entitled to exercise those functions as if they were as respects such roads the highway authority: 18 & 19 Geo. 5.
c. 17.

And whereas the trunk roads within the borough are vested in the Minister of Transport but the Corporation exercise the functions of maintenance and repair thereof as agents for the said Minister:

And whereas there are within the borough a large number of streets (hereinafter referred to as "private streets") which although they are dedicated to public use are not repairable by the inhabitants at large:

And whereas many of such private streets have (largely owing to circumstances arising out of the war) fallen into such a state of disrepair that they are a constant source of danger to persons and vehicles using them:

55 & 56 Vict.
c. 57.

And whereas the Corporation have not adopted the Private Street Works Act 1892:

And whereas the conditions in certain of such private streets are so dangerous as to necessitate immediate remedial action but the immediate danger could be removed by the execution by the Corporation of works of repair at a small cost and without diverting labour from other purposes for which it is required:

And whereas it is expedient that the powers contained in this Act with respect to the execution of such works of repair should be conferred upon the Corporation:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

23 & 24 Geo. 5.
c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Luton Corporation Act 1947.

Interpreta-
tion.

2. In this Act—

“ the borough ” means the borough of Luton;

“ the Corporation ” means the mayor aldermen and burgesses of the borough.

As to urgent
repairs of
private
streets.

3. Where in the opinion of the Corporation repairs the cost of which will not exceed one hundred pounds are required in the case of any street in the borough not being a highway repairable by the inhabitants at large to obviate or remove danger to any passenger or vehicle in the street the Corporation may execute such repairs as they deem necessary and may themselves pay such cost and the execution of such repairs and the payment of such cost shall not prejudice or

affect any statutory provisions for the time being in force relating to private street works and private improvement expenses or similar matters or of section 19 (As to urgent repairs to private streets) of the Public Health Acts Amendment Act 7 Edw. 7. c. 53. 1907.

4. All costs charges and expenses of and incidental to the Costs of Act.
preparing applying for obtaining and passing of this Act or
otherwise in relation thereto as taxed by the taxing officer of
the House of Lords or of the House of Commons shall be
paid by the Corporation out of the general rate fund and the
general rate of the borough.

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Luton Corporation
Act, 1947.

10 & 11 GEO. 6.

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